

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2026-CC-

JAMES MALLIA, EDWIN R. MALLIA, JOSEPH
LOUIS MALLIA and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

**COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTION) AND
DAMAGES**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), JAMES
MALLIA, EDWIN R. MALLIA, JOSEPH LOUIS MALLIA and ANY UNKNOWN PARTY(s)
IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT I

ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida, doing business as COLONIAL MOBILE MANOR.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #122, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 residential rental agreements in mobile home parks, including that between the Defendants, EDWIN R. MALLIA and JOSEPH LOUIS MALLIA, and the Plaintiff, are annual.

5. Defendants, EDWIN R. MALLIA and JOSEPH LOUIS MALLIA, natural persons, agreed to reside at 900 9th Ave East, Lot #122, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the Defendants, EDWIN R. MAILLIA and JOSEPH MALLIA's acknowledgment of receipt of the Rules and Regulations is attached to this Complaint as Plaintiff's "Composite Exhibit A".
6. Defendant, JAMES MALLIA, applied and was approved as an additional occupant to reside at 900 9th Ave East, Lot #122, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the Defendant JAMES MALLIA's acknowledgment of receipt of the Rules and Regulations is attached to this complaint as Plaintiff's "Exhibit B".
7. Defendant(s), ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property at 900 9th Avenue East, Lot #122, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.
8. Defendants, EDWIN R. MALLIA and JOSEPH LOUIS MALLIA, are the co-record owners of the mobile home located on the real property on 900 9th Ave East, Lot #122, Palmetto, Florida, 34221, and are parties to this eviction pursuant to provisions of the Florida Mobile Home Act, Chapter 723 of Florida Statutes. Defendant, EDWIN R. MALLIA is now believed to be deceased. A copy of Defendant, EDWIN R. MALLIA's Suggestion of Death is attached is "Exhibit C". Defendant, JOSEPH LUIS MALLIA is now believed to be deceased. A copy of Defendant, JOSEPH LUIS MALLIA's Suggestion of Death is attached is "Exhibit D".
9. The landlord/tenant relationship between Plaintiff and the Defendant in this cause

is governed by Florida Statutes Chapter 723.

10. Plaintiff, as landlord, leased to Defendants, JAMES MALLIA, EDWIN R. MALLIA and JOSEPH LOUIS MALLIA, LOT #122, of the above stated mobile home park at a monthly rental fee.
11. For the year 2026, the monthly rent is the sum of \$875.00.
12. Defendants, JAMES MALLIA, EDWIN R. MALLIA and JOSEPH LOUIS MALLIA, are in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$1,840.00 which represents the months of February 2026 through March 2026 including late fees, which, according to the Rules and Regulations of Colonial Manor are additional rent.
13. On March 13, 2026, Plaintiff served on Defendants, JAMES MALLIA, EDWIN R. MALLIA, JOSEPH LOUIS MALLIA and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9th Avenue East, Lot #122, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendants that if they failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's **Exhibit "E"**.
14. On March 13, 2026, Plaintiff also served on Defendants, JAMES MALLIA, EDWIN R. MALLIA, JOSEPH LOUIS MALLIA and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot Rental Amount, by certified mail return receipt requested, pursuant to Fla. Stat. § 723.061(4). A copy of this Notice and certified proof of mailing is attached and marked Plaintiff's **Exhibit "F"**.

15. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for possession of the premises.
16. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in LOT #122 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.
17. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.
18. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.
19. Plaintiff has retained the law firm of William C. Price, III, P.A. to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.
20. The total lot rental amounts due as of March 13, 2026, which must be paid into the registry of the Court, are \$1,840.00, plus \$875.00 for the month of April 2026 and \$875 per month due each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, JAMES MALLIA, EDWIN R. MALLIA, JOSEPH LOUIS MALLIA and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II

ACTION FOR DAMAGES (RENTAL)

21. This is an action seeking less than \$50,000.00 excluding costs, interest and attorney fees.

22. Plaintiff re-alleges the facts contained within paragraphs 1 through 20 as though fully set forth herein.
23. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.
24. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendants, JAMES MALLIA, EDWIN R. MALLIA and JOSEPH LOUIS MALLIA, for damages, costs, attorney fees and a reservation of remedies.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession (Eviction) and Damages has been furnished to a private process server for service upon the Defendants, JAMES MALLIA, EDWIN R. MALLIA, JOSEPH LOUIS MALLIA and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #122, Palmetto, Florida, 34221, on this 14th day of April, 2026.

William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-37122
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff

Colonial Mobile Manor

900 9th Ave. East (U.S. 301 North)

Palmetto, Florida 34221

Phone: (813) 722-3191

LOT # 122

WE (I) HEREBY ACKNOWLEDGE RECEIVING A PROSPECTUS
OF COLONIAL MOBILE MANOR WHICH INCLUDES THE PARK
RULES AND REGULATIONS WHICH WE (I) AGREE TO ABIDE
BY.

DATE 6-1-98

x Clavin R. Mallia

x Joseph Mallia

EXHIBIT

tabbies

A

composite

COLONIAL MOBILE MANOR 55+ COMMUNITY

900 9TH AVE E
PALMETTO, FLORIDA 34221
PHONE: (941) 722-3191

LOT # 122

I (WE) HEREBY ACKNOWLEDGE RECEIVING THE RULES AND REGULATIONS OF
COLONIAL MOBILE MANOR 55+ COMMUNITY, WHICH I (WE) AGREE TO ABIDE
BY.

DATE: FEB 22 2022

SIGNATURE: Edwin Mallis

SIGNATURE: _____

Colonial Mobile Manor
900 9th Ave East Palmetto, FL 34221
941-722-3191

Lot # 122

Resident Name JAMES MALHIA

Resident Name _____

Resident Name _____

Northern Address _____

Phone/Cell 99/242-4357 Phone/Cell _____

Emergency Contact Information (Please provide two contact names):

Name: ED. MALHIA Phone/Cell (_____)

Name: _____ Phone/Cell _____

I agree I have received the Rules and Regulations Effective April 1, 2016.

Resident JAMES MALHIA Date 6-18-2020

Resident _____ Date _____

I agree I have received one (1) mail box key today. Additional keys will be \$25.00 each.

Resident: JAMES MALHIA Date 6-18-20

EXHIBIT

B

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2026-CC-

JAMES MALLIA, EDWIN R. MALLIA, JOSEPH
LUID MALLIA and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

SUGGESTION OF DEATH
PURSUANT TO FLORIDA RULE OF CIVIL PROCEDURE 1.260 (a)(1)

PLEASE TAKE NOTICE that COLONIAL MANOR MHC HOLDINGS, LLC, Plaintiff, in the above-captioned case, respectfully notifies this Honorable Court that Defendant, EDWIN R. MALLIA, is believed to have died on May 24, 2023. The SmartLinx Person Report indicating his death is attached as "Exhibit 1".

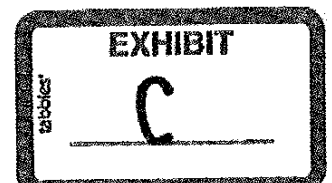
A hearing on this suggestion is requested pursuant to Fla. R. Civ. P. 1.260.

RESPECTFULLY SUBMITTED this 14th day of April, 2026.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Suggestion of Death has been furnished to a private process server for service upon the Defendants, JAMES MALLIA, EDWIN MALLIA, JOSEPH MALLIA and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #122, Palmetto, Florida, 34221, on this 14th day of April, 2026.

/s/ William C. Price, III
William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-37122
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff



1 OF 1 RECORD(S)

Florida Death Record

This data is for informational purposes only.

Decedent Information

Name: MALLIA, EDWIN RICHARD
Address: 900 9TH AVE E LOT 112112
PALMETTO, FL 34221-5322
MANATEE COUNTY
LexID(sm): 006593825569

Decedent Personal Information

SSN: 104-30-XXXX
Gender: MALE
Age: 82
Date of Death: 05/24/2023
Race: WHITE
Date of Birth: 07/1940
Birthplace: NEW YORK, UNITED STATES
Marital Status: DIVORCED
Armed Forces: YES
Education: 9TH THRU 12TH GRADE; NO DI

Family Information

Father: MALLIA, JOSEPH
Mother: BONNET, EMANUELA

Death Information

Certifier: PHYSICIAN

EXHIBIT

1

edwin_mallia

Death Location: BRADENTON, MANATEE**Death Disposition:** CREMATION**Hospital Status:** HOSPITAL-INPATIENT

Important: The Public Records and commercially available data sources used on reports have errors. Data is sometimes entered poorly, processed incorrectly and is generally not free from defect. This system should not be relied upon as definitively accurate. Before relying on any data this system supplies, it should be independently verified. For Secretary of State documents, the following data is for information purposes only and is not an official record. Certified copies may be obtained from that individual state's Department of State.

Your DPPA Permissible Use: Motor Vehicle or Driver's Safety

Your Secondary DPPA Permissible Use: None

Your GLBA Permissible Use: Legal Compliance

Your DMF Permissible Use: Legitimate Business Purpose

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End of Document

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COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2026-CC-

JAMES MALLIA, EDWIN R. MALLIA, JOSEPH
LUID MALLIA and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

SUGGESTION OF DEATH
PURSUANT TO FLORIDA RULE OF CIVIL PROCEDURE 1.260 (a)(1)

PLEASE TAKE NOTICE that COLONIAL MANOR MHC HOLDINGS, LLC, Plaintiff, in the above-captioned case, respectfully notifies this Honorable Court that Defendant, JOSEPH MALLIA, is believed to have died on December 7, 2011. The SmartLinx Person Report indicating his death is attached as "Exhibit 2".

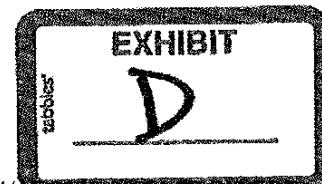
A hearing on this suggestion is requested pursuant to Fla. R. Civ. P. 1.260.

RESPECTFULLY SUBMITTED this 14th day of April, 2026.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Suggestion of Death has been furnished to a private process server for service upon the Defendants, JAMES MALLIA, EDWIN MALLIA, JOSEPH MALLIA and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #122, Palmetto, Florida, 34221, on this 14th day of April, 2026.

/s/ William C. Price, III
William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-37122
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff





1 OF 1 RECORD(S)

Florida Death Record

This data is for informational purposes only.

Decedent Information

Name: MALLIA, JOSEPH LOUIS
Address: PALMETTO, FL 34221
MANATEE COUNTY
LexID(sm): 001588789231

Decedent Personal Information

SSN: 051-28-XXXX
Gender: MALE
Age: 75
Date of Death: 12/07/2011
Race: WHITE
Date of Birth: 01/1936
Birthplace: NEW YORK
Marital Status: DIVORCED
Armed Forces: YES
Education: ELEMENTARY

Family Information

Father: MALLIA, JOSEPH

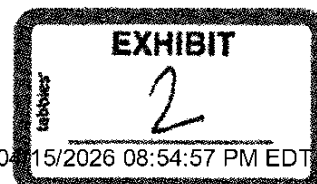
Death Information

Death Certification Number: 163598
Certifier: M.D. OR OTHER SPECIFIED
Death Location: PALMETTO, MANATEE
Death Disposition: CREMATION
Hospital Status: NURSING HOME
Pregnancy: UNKNOWN

Important: The Public Records and commercially available data sources used on reports have errors. Data is sometimes entered poorly, processed incorrectly and is generally not free from defect. This system should not be relied upon as definitively accurate. Before relying on any data this system supplies, it should be independently verified. For Secretary of State documents, the following data is for information purposes only and is not an official record. Certified copies may be obtained from that individual state's Department of State.

Your DPPA Permissible Use: Motor Vehicle or Driver's Safety
Your Secondary DPPA Permissible Use: None
Your GLBA Permissible Use: Legal Compliance
Your DMF Permissible Use: Legitimate Business Purpose

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COLONIAL MANOR MHC HOLDINGS, LLC

d/b/a COLONIAL MANOR

900 9TH Avenue East

Palmetto, FL 34221

941-722-3191

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: March 13, 2026

TO: Edwin Mallia, Joseph Louis Mallia,

James Mallia and Any Unknown

Party(s) in Possession

900 9th Avenue E Lot #122

Palmetto, FL 34221

CMR# 9589 2710 5270 3303 2786 09

FROM: Colonial Manor MHC Holdings, LLC

900 9th Avenue East

Palmetto, FL 34221

Telephone: (941)-722-3191

Cheryl Penka, Manager

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL- RETURN RECEIPT REQUESTED

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$875.00 per month.

You have failed to pay the past due lot rental amounts for the months of February, 2026 through March, 2026, in the amount of \$1,638.00, consisting of the items shown below. The total lot rental amount due as of the date of this demand is \$1,638.00, payable to the address above.

- Rent for the billing period of March 2026 in the amount of \$875.00
- Late fee for the billing period of March in the amount of \$45.00

February 2026- \$718

Rent on Feb 1, 2026 to Feb 28, 2026 in the amount of \$718.00

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays). If the total lot rental amount now due is not paid on or before March 23, 2026, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY

MAILED CERTIFIED RETURN RECEIPT ON: March 13, 2026

BY:

Employee Signature

EXHIBIT

E

COPY POSTED ON PREMISES (900 9th Ave E, Lot #122)

POSTED ON: March 13, 2026 @ 4pm
(date/time)

POSTED BY: [Signature]
(Employee Signature)

Colonial Manor MHC Holdings, LLC

Vs.

Edwin Mallia, Joseph Louis Mallia, James Mallia and Any Unknown Party(ies) in Possession

**COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MANOR
900 9TH Avenue East
Palmetto, FL 34221
941-722-3191**

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: March 13, 2026

**TO: Edwin Mallia, Joseph Louis Mallia,
James Mallia and Any Unknown
Party(s) in Possession
900 9th Avenue E Lot #122
Palmetto, FL 34221**

**FROM: Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, FL 34221
Telephone: (941)-722-3191
Cheryl Peake, Manager**

CMRR # 9589 0710 5270 3303 2786 09

**VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL- RETURN RECEIPT
REQUESTED**

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PLEASE GOVERN YOURSELF ACCORDINGLY

MAILED CERTIFIED RETURN RECEIPT ON: March 13, 2026.

**BY: Cheryl Peake
Employee Signature**

COPY POSTED ON PREMISES (900 9th Ave E, Lot #122)

POSTED ON: March 13, 2026 @ 4pm
(date/time)

POSTED BY: [Signature]
(Employer Signature)

Colonial Manor MHC Holdings, LLC

Vs.

Edwin Mallia, Joseph Louis Mallia, James Mallia and Any Unknown Party(s) in Possession

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MANOR
900 9th Avenue East
Palmetto, FL 34221
941-722-3191

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: March 13, 2026

TO: Edwin Mallia, Joseph Louis Mallia,
James Mallia and Any Unknown
Party(s) in Possession
900 9th Avenue E Lot #123
Palmetto, FL 34221

FROM: Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, FL 34221
Telephone: (941)-722-3191
Cheryl Peake, Manager

CMRR # 9589 0710 5270 3303 2786 09

**VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL- RETURN RECEIPT
REQUESTED**

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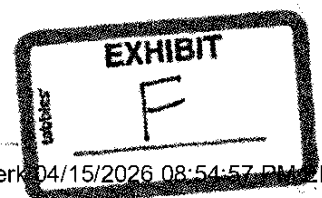
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PLEASE GOVERN YOURSELF ACCORDINGLY

MAILED CERTIFIED RETURN RECEIPT ON: March 13, 2026.

BY: Cheryl Peake
Employee Signature



COPY POSTED ON PREMISES (900 9th Ave E, Lot #122)

POSTED ON: March 13, 2026 @ 4pm
(date/time)

POSTED BY: 
(Employee Signature)

Colonial Manor MHC Holdings, LLC

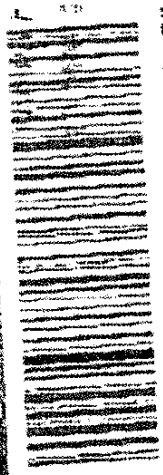
Vs.

Edwin Mallia, Joseph Louis Mallia, James Mallia and Any Unknown Party(s) in Possession

9589 0710 5270 3303 2786 09

U.S. Postal Service	
CERTIFIED MAIL RECEIPT	
Palmetto, FL 34221	
Postage	\$5.00
Insurance	\$4.00
Registration Fee	\$0.00
Delivery Confirmation	\$0.00
Signature Confirmation	\$0.00
Return Receipt	\$0.00
Total	\$9.00
Postage	\$0.78
Total	\$9.78
03/13/2010	
Edwin Mallie, Joseph Mallie, James Hall	
900 Gunpowder Ct Lot 122	
Palmetto, FL 34221	

CERTIFIED MAIL



9589 0710 5270 3303 2766 04

Retail



34221

U.S. POSTAGE PAID
FCM LETTER
PALMETTO, FL 34221
MAR 13, 2028

\$10.48

\$2324MS04419-3

RDC 59

*E. Walling, Joe Walling
James Walling & Associates*

900 9th St. S. #1000
Des Moines, IA 50319

9589 0710 5270 3303 2766 04
9589 0710 5270 3303 2766 04
9589 0710 5270 3303 2766 04

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*LA/LB
2-16-28*